RYAN BAGLOW
versus
THE STATE
and
IGNATIUS MHERE ESQ

HIGH COURT OF ZIMBABWE
**CHITAPI J**
HARARE; 7 November 2025

**Court Application for Review**

*T Zhuwarara*, for the applicant
Respondents in default

CHITAPI J: The delivery of this judgment has delayed owing largely to system migration challenges when records were being uploaded enmasse onto to the IECMS platform with other records being mislaid. Be that as it may, this is an application for review of the decision by the second respondent as the presiding magistrate at Harare Magistrates Court in the Criminal case State v Ryan Baglow CRB 924/20. In that case the applicant was arraigned before the court on a charge of fraud as defined in section 136 of the Criminal Law [Codification and Reform Act], [*Chapter 9.23*] (Code). The allegations made against the applicant was that the applicant who was known to the complainant as Ryan Stewart misrepresented to the complainant that he had appointed a legal practitioner called Ryan Baglow to represent the complainant in the sale of the complainants two properties in Kariba. It was alleged that the applicant was in fact the same person using the names Ryan Baglow and Ryan Stewart. It was further alleged that after the complainant had appointed the applicant as its representative in the sale, the applicant failed to account or incorrectly accounted for the sale proceeds of US$200 000.00 which were deposited into his firm's account.

The trial in the lower court commenced and three state witnesses gave evidence. The first respondent closed its case following which the applicant's counsel made an application for discharge of the applicant at the close of the state's case in terms of section 198(3) of the Code. The second respondent dismissed the application. The applicant was not satisfied with the dismissal of his application. He filed this application for review. There was no opposition

filed by the respondents. Significantly, the second respondent cited in his judicial capacity was not expected to file any opposition since it would be irregular for him to review his own judgment so to speak if he was to either support his opposition or oppose the application. The reason for citing the second respondent is a procedural issue in particular rule 62(1) of the High Court Rules S.I. 202/2021 which require that in any proceedings to bring decisions of inferior courts and other bodies therein named on review before this court, such review proceedings ought to be instituted by court application must be directed and delivered on magistrate or such other person as chaired the body whose decision is brought under review. In casu, the applicant who cited the magistrate as the first respondent and the state as the second respondent, not vice versa as was done by the applicant. I make point as a guide and do not determine the application on the basis of order of the parties' citations more so because it is not a point which fell or was raised for my determination.

Suffice that on the set down date, 19 October 2023, the first respondent was not represented. No opposing papers had been filed by the first respondent either. Mr *Zhuwarara* who appeared for the applicant submitted that the applicant had filed the transcribed record of proceedings on 3 August 2023 after filing the review application on 18 May 2023. He further submitted that although the matter could have been set down on the unopposed roll, the court was enjoined to consider the application on its merits. This is correct because a review entails the court having to consider the proceedings on the basis of the contents of the record as circumscribed in its four corners. In manner of speaking, the review court can in fact pick out reviewable matters upon reading the record without even the parties' submissions. A review is not based upon allegations of new facts to ground the review. The facts on which proceedings are reviewed are as appear on record. There will of course be rare instances when a review is motivated by facts which come to light outside of the record. This aspect does not arise herein. What I need to record though is that review applications of this nature as herein must be set down on the opposed roll even though there is no opposition.

In light of the submissions by Mr *Zhuwarara,* I directed him to file heads of argument to motivate the review by 25 October 2023 and he complied. I then promised that I would be able to write written reasons for the order that I would grant by 27 October 2023. As I have indicated, there were IECMS migration issues which resulted in the record not being followed up.

On considering the application, it has emerged that there is on record a letter dated 31 July 2024 by the first respondent counsel L. Chitanda from the National Prosecuting

Authority. She stated that the first respondent in fact filed opposing papers on 30 August 2023 after the filing of the record on 22 August 2023. Counsel attached a copy of the notice of opposition filed not on 30 August 2023 but on 29 August 2023 going by the franked stamp of the Registrar endorsed thereon. Counsel alleged that due to the systems migration issues and a directive from the Registrar that all documents for court be uploaded on the system, the opposition could not be uploaded because the first respondent was not linked to the case. The notice of opposition does not appear in the system as an uploaded document. It is also apparent that upon being served with the application the first respondent filed a response on 22 May 2023 wherein it requested that the transcribed record of proceedings should be filed. It seems to me that the willingness to oppose the application on the part of the first respondent has always been visible and demonstrated. The issue of regularity of filing and possible out of time filing or papers arguments which may arise should be dealt with in arguments. It would be irregular to proceed to do a determination on the basis of default by the state in the light of the circumstances which I have enumerated.

The course which I have resolved to take is a case management one. It will ensure that the interests of justice are met, and the matter be dealt with to finality in this court without the looming risk that the first respondent will seek that the default judgment if the application succeeds be rescinded and finality is delayed. Apart from the regretted delay in the finalisation of the application, there is no apparent prejudice to the applicant because the review facts will not change as they are record based. The first respondent should be given an opportunity to be heard in the matter for justice to be seen to be done. The following order will ensue

IT IS ORDERED THAT

1. Judgment is further deferred.
2. The first respondent shall within three (3) days of the date of this order upload on the IECMS its notice of opposition date franked 29 August 2023.
3. Within a further three (3) days from the date of uploading the notice of opposition, the first respondent shall file heads of argument to motivate its opposition.
4. The Registrar shall in consultation with the parties' legal practitioners set the matter for hearing during the course of November 2025 so that it is disposed of before vacation.

5. The proceedings in the lower courts are stayed pending finalisation of this matter.

**CHITAPI J:…….**

*Whalman and Stewart*, applicant's legal practitioners
*Nation Prosecuting Authority* ,